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TITLE 16. ECONOMIC REGULATION

PART 4. TEXAS DEPARTMENT OF LICENSING AND REGULATION

CHAPTER 83. BARBERS AND COSMETOLOGISTS

§83.25. License Requirements--Continuing Education.

(a) Terms used in this section have the meanings assigned by Chapter 59 (relating to Continuing Education Requirements), unless the context indicates otherwise.

(b) To renew a practitioner license, a licensee must complete at least 4 hours of continuing education through department-approved courses. The continuing education hours must include the following:

(1) 1 hour in sanitation required under the Act and this chapter;

(2) for renewals on or after September 1, 2025, 1 hour on human trafficking prevention, which at a minimum must include information on:

(A) activities commonly associated with human trafficking;

(B) recognition of potential victims of human trafficking; and

(C) methods for assisting victims of human trafficking, including how to report human trafficking; and

(3) the remaining hours in any topics listed in subsection (h).

(c) Continuing education hours required under §83.25(b)(3) and taught before September 1, 2025, must include information on human trafficking prevention. At a minimum, these courses must include information on:

(1) activities commonly associated with human trafficking;

(2) recognition of potential victims of human trafficking; and

(3) methods for assisting victims of human trafficking, including how to report human trafficking.

(d) For a timely or a late renewal, a licensee must complete the required continuing education hours within the two-year period immediately preceding the renewal date.

(e) A licensee may not receive continuing education hours for attending the same course more than once.

(f) A licensee will receive continuing education hours for only those courses that are registered with the department, under Chapter 59 and procedures prescribed by the department.

(g) A licensee must retain a copy of the certificate of completion for a course for two years after the date of completion. In conducting any inspection or investigation of the licensee, the department may examine the licensee's records to determine compliance with this subsection.

(h) To be approved under Chapter 59, a provider's course must be dedicated to instruction in one or more of the following topics:

(1) sanitation required under the Act and this chapter;

(2) the Act and this chapter, addressing topics other than sanitation;

(3) the topics listed in the curriculum standards in §83.202;

(4) mental health awareness, which may include topics on mental health, mental illness, suicide prevention, and opportunities to provide clients referrals or other assistance;

(5) human trafficking prevention which at a minimum must include information on:

(A) activities commonly associated with human trafficking;

(B) recognition of potential victims of human trafficking; and

(C) methods for assisting victims of human trafficking, including how to report human trafficking.

(i) A registered course may be offered until the expiration of the course registration or until the provider ceases to hold an active provider registration, whichever occurs first.

(j) A provider must pay to the department a continuing education record fee of \$5 for each licensee who completes a course for continuing education credit. A provider's failure to pay the record fee for courses completed may result in disciplinary action against the provider, up to and including revocation of the provider's registration under Chapter 59.

(k) Notwithstanding subsection (b), a licensee who has held a practitioner license in Texas for at least 15 years may satisfy the continuing education requirement for renewal by completing department-approved courses as follows:

(1) for renewals before September 1, 2025, one hour of sanitation; or

(2) for renewals on or after September 1, 2025:

(A) one hour of sanitation; and

(B) one hour of human trafficking prevention.

(l) Barber licensees exempt from continuing education requirements until September 1, 2025. Beginning on September 1, 2025, the requirements of this section will apply to a licensee who, on August 31, 2023, held a license issued under Texas Occupations Code Chapter 1601 and Chapter 82, when that licensee files an application with the department to renew that license.